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Seldin studying up for new job as judge

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Voters have the chance to decide if Ninth Judicial District Judge Chris Seldin should remain in his post.
Aspen Times File

Chris Seldin has been doing his homework.

The former assistant Pitkin County attorney takes over Monday as Aspen’s newest District Court judge. And since he was appointed in September, Seldin has spent nights and weekends studying books about criminal law and domestic-relations law in Colorado, two areas that are more or less foreign to him.

“I know there will be a lot of challenges, especially in the first year,” Seldin said during an interview last week. “I’ll be launching into areas I haven’t practiced as an attorney.”

Unlike Gail Nichols — an experienced criminal attorney who Seldin replaces — Seldin’s area of expertise has been mainly on the civil side of the law. He has worked for Pitkin County since July 2002 and handled cases involving property damage, land-use claims and oil-and-gas law, among other areas.

With domestic relations and criminal law, a judge is often facing people at one of the worst points of their lives, he said.

“I think most of us are happiest when we’re not involved in the courthouse,” he said. “It’s probably true of all cases, but domestic cases in particular ... are freighted with emotional weight.”

But when it comes to the civil docket — District Court judges in Aspen handle both — he said he’ll feel much more at home.

Seldin, 44, was the county’s point man on the issue of Thompson Divide and the controversy surrounding federal oil and gas leases there. Pitkin County has fought hard to void leases in the northwest corner of the county.

Seldin said he doesn’t expect the issue to come up in the course of his work as District Court judge because it involves federal leases and, thus, would be handled in federal court. However, if something came up in District Court involving an issue he’d handled as a county

“I can judge it effectively if I had to be objective,” he said.

Seldin, who was appointed in September by Gov. John Hickenlooper, also was a finalist for the Aspen District Court job in 2008, when Nichols was appointed. He was a member of the Basalt Town Council when he was named a finalist for that job, and resigned his seat on that board to pursue the judge position.

At the time, he said he’d moved to Aspen about a month before he was named a finalist for the job in order to establish residency in the 9th Judicial District, which includes Pitkin, Garfield and Rio Blanco counties. Seldin’s home in Basalt is just across the Eagle County line.

Colorado law says a district court judge must be a “qualified elector” of the district where he or she will serve at the time of selection or election.

When Nichols was appointed, Seldin moved back to Basalt and was reappointed, 46 days after he resigned, to his old councilman seat. He served one term — from 2006 to 2010 — on the council.

The issue of Seldin’s residence also appears a bit jumbled this time around.

According to his latest judgeship application, Seldin lived in the Eagle County home in Basalt until April 2010, when he moved to a small apartment he purchased near Original Curve in Aspen. He lived there until April 2012, when he began splitting time between that home and his Basalt home, according to the application.

He moved back to Basalt permanently in August 2014, then began renting another small apartment near Original Curve in August this year, according to the application.

Seldin said he moved to Aspen in 2010 because he was single and many of his friends lived in town. He rented out the Basalt home at the time.

Other than saying he remains single, Seldin declined to talk further about his personal life on the record, though he said his most recent move back to Aspen in August was for personal reasons and not for judicial residency. He didn’t move back to the apartment in Aspen he owns because it is rented out to someone else, Seldin said.

Nonetheless, he said he is under contract to buy a house in Pitkin County and is hoping to close on that by the first week of December.

Seldin grew up in Durango, where he was a member of the cross-country ski team from middle school onward. He received an undergraduate degree from Dartmouth College in New Hampshire, where he continued cross-country ski racing, then went to law school on the other side of the country at the University of California at Berkeley, where he took up telemarking.

His first job out of law school was as a clerk for former Colorado Supreme Court Justice Gregory Hobbs, which gave him a perspective that will come in handy in his new job.

“I really enjoyed looking at a case from the prerogative of the court,” Seldin said. “Figuring out the best outcome rather than trying to figure out how to argue the case — that is really appealing.”

He said he’s looking forward to interacting with attorneys in the area and dealing with new and different legal issues.

“It’s going to present new challenges everyday,” he said. “That’s what keeps things fresh.”

And he said he plans on sticking around for awhile.

“I don’t think I’m going to get tired of this new job,” Seldin said. “I don’t have any plans beyond this.”

Seldin’s old boss, Pitkin County Attorney John Ely, highly approves of his selection as judge.

“I think he’s exceedingly conscientious,” Ely said. “He’ll be a protector of citizens’ rights who appear before him. I’m going to miss him.”

Seldin now will now go from one Ely to another, because Ely’s wife, Pitkin County Judge Erin Fernandez-Ely, works just down the hall from his new courtroom.

“It’s kinda weird,” John Ely said. “I’ve always been friends with the judges around here, but all of a sudden I’m married to one and really good friends with the other.”

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